

FEDERAL MARITIME COMMISSION

DOCKET NO. 21-09

**HAPAG-LLOYD, A.G. and HAPAG-LLOYD (AMERICA) LLC. —POSSIBLE
VIOLATIONS OF 46 U.S.C. § 41102(c)**

THIRD JOINT STATUS REPORT

As directed by the Administrative Law Judge’s Schedule Order (Scheduling Order), served January 6, 2022, the Bureau of Enforcement (BOE) and Respondents Hapag-Lloyd, A.G., and Hapag-Lloyd (America) LLC (collectively, “Hapag-Lloyd”) submit this third Joint Status Report and state as follows:

Counsel for the BOE and Hapag-Lloyd (the Parties) conferred on January 25, 2022, to discuss Respondents’ request for an oral hearing and their estimate of the number of witnesses expected to testify and a proposed timeline. The Parties also discussed potential dates for oral hearing and propose March 1-2, 2022 as it would occur prior to briefing and allow both Parties sufficient time to draft their respective briefs. At this time BOE does not oppose an oral hearing and leaves the necessity of such a hearing with the discretion of the court.

Although Respondents presently believe an oral hearing will be helpful, their position could change as a result of information that may be uncovered as discovery continues. In this regard, it presently appears to Respondents that the interpretation different entities have of certain documents and information contained therein could be an important factor in this proceeding. The Presiding

Officer may be required to choose between differing interpretations of such documents, a determination which could require the Presiding Officer to assess the credibility of witnesses. An oral hearing would be valuable in this respect. Respondents are not yet certain how many witnesses they might call at such a hearing, but it would likely be a small number (approximately 2-3).

If such a hearing is required, BOE would likely call no more than eight witnesses. BOE's examination of the witnesses would take no more than four to five hours.

The Parties have met most discovery deadlines and continue to coordinate with each other about continued obligations. Regarding settlement, the Parties have met to discuss settlement on three separate occasions and continue to discuss this possibility.

DATED: February 4, 2022

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that on this 4th day of February 2022, a copy of the foregoing Joint Status Report has been served upon all counsel of record in accordance with 46 C.F.R. Part 502.

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